

26VECV02247 26VECV02247

County: los-angeles

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Case Number: 26VECV02247 Hearing Date: August 17, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

COHEN INV LLC,

Plaintiff,

vs.

REISNER & KING, LLP, and DOES 1

through 10, Inclusive,

Defendant.

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CASE NO.: 26VECV02247

ORDER

OVERRULING DEFENDANT'S DEMURRER

ORDER

GRANTING IN PART DEFENDANT'S MOTION TO STRIKE

REISNER & KING, LLP,

Cross-Complainant,

vs.

COHEN INV LLC, JACK G. COHEN, and ROES 1
through 5, inclusive,

Cross-Defendants.

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I.

BACKGROUND

Plaintiff, Cohen Inv LLC

("Cohen") brings this breach of contract action against Defendant Reisner & King, LLP ("Reisner"). Cohen alleges it and Reisner entered into a written expert witness agreement pertaining to a San Bernardino Justice Center (SBJC) Case No. CIV-SB2218922. Cohen alleges Reisner failed to remit payment to Cohen for \$48,640 for 178.90 hours worked between June 29, 2023, to March 6, 2025, plus 10% annual interest thereon.

Reisner now demurrers to
and moves to strike portions of the Complaint.

II.

PROCEDURAL

HISTORY

On April 15,
2026, Plaintiff filed a Complaint alleging (1) Breach of Contract and (2)
Goods and
Services Rendered.

On July 20,
2026, Reisner filed the instant Demurrer and Motion to Strike. Reisner also
filed its Cross-Complaint.[1]

On August 12,
2026, Plaintiff untimely filed its Opposition.[2]

On August 13,
2026, Reisner filed its Objection to Plaintiff's untimely Opposition and a
Reply.

III.

MEET AND CONFER

Before filing
a demurrer or motion to strike, the moving party shall meet and confer in
person, by telephone, or by video conference with the party who filed the
pleading that is subject to demurrer or motion to strike for the purpose of
determining whether an agreement can be reached that would resolve the
objections to be raised in the demurrer or motion to strike. (See Code
Civ. Proc. § 430.41(a)[3],
§435.5(a).) A declaration must be filed with a demurrer regarding the results
of the meet and confer process. (See Code Civ. Proc. §
430.41(a)(3).)

The Court
finds Reisner satisfied its meet and confer obligation. (See Declaration
of Adam Reisner filed July 20, 2026, ¶¶ 5, 8-10.) Plaintiff's counsel's
argument that these efforts were inadequate ignore her obligation to respond as
requested multiple times to conduct the meet and confer by way of an actual conversation
consistent with the Code as opposed to exclusively by way of emails as she
resorted to. (See id., Exh. B.)

IV.

DEMURRER

A.

Legal Standard

A demurrer
may be brought if insufficient facts are stated to support the cause of action
asserted. (See Code Civ. Proc. § 430.10(e).) "[T]he court gives the complaint a reasonable
interpretation, and treats the demurrer as admitting all material facts

properly pleaded.” (Id.)

Allegations are to be liberally construed. (See Code Civ. Proc. § 452.)

In testing the sufficiency

of the complaint, the court must assume

the truth of (1) the properly pleaded factual allegations; (2) facts that can be reasonably inferred from those expressly pleaded; and (3) judicially noticed matters. (See *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Accordingly, “[w]hether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer.” (Stevens v.

Superior Court (1986) 180

Cal.App.3d 605, 609-610.) To the extent factual allegations conflict with the content of the exhibits to the complaint, we rely on and accept as true the contents of the exhibits and treat as surplusage the pleader’s allegations as to the legal effect of the exhibits. (See *Barnett v. Fireman’s Fund Ins. Co.* (2001) 90 Cal.App.4th 500, 505.) A demurrer can only be sustained when it disposes of an entire cause of action. (See *Poizner v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119; *Kong v. City of Hawaiian Gardens Redev. Agency* (2003) 108 Cal.App.4th 1028, 1046.)

A demurrer

may be brought if the pleading is uncertain, ambiguous, or unintelligible. (See Code Civ. Proc. § 430.10(f).) “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (*Khoury v. Maly’s of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) As a result, a special demurrer for uncertainty is not intended to reach failure to incorporate sufficient facts in the pleading but is directed only at uncertainty existing in the allegations already made. (See *People v. Taliaferro* (1957) 149 Cal.App.2d 822, 825.) Where complaint is sufficient to state a cause of action and to apprise defendant of issues he is to meet, it is not properly subject to a special demurrer for uncertainty. (See *id.*; see also *Gressley v. Williams* (1961) 193 Cal.App.2d 636, 643 [“[a] special demurrer [for uncertainty] should be overruled where the allegations of the complaint are sufficiently clear to apprise the defendant of the issues which he is to meet”].)

Leave to amend must be allowed where there is a

reasonable possibility of successful amendment. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the complainant to show the Court a pleading can be amended successfully. (See *id.*) However, “[i]f there

is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

B.

Analysis

1.

Breach of Contract

To state a

cause of action for breach of contract, Plaintiff must establish “(1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff.” (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.) If a breach of contract claim “is based on alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written agreement must be attached and incorporated by reference.” (Harris v. Rudin, Richman & Appel (1999) 74 Cal.App.4th 299, 307.)

Reisner

demurrers to the first claim on grounds that it is uncertain pursuant to CCP § 430.10(f). Reisner argues the breach of contract claim fails to state the terms of the alleged contract were met and instead seeks \$48,640 plus 10 percent interest without pleading the date or amount of any statement, the date any payment became due, the date of breach, or a coherent interest and damages calculation. (See Dem. at 5:6-12, 8:2-4, 8:10-18.) Reisner argues this claim must be amended to plead the payment obligation, breach date, invoice dates, and amount calculation as the terms of the alleged contract makes this information central to the alleged breach. (See id., at 5:13-14, 10:10-11.)

The Court OVERRULES Reisner’s demurrer

for uncertainty pursuant to Code of Civil Procedure § 430.10(f) on the grounds demurrers for uncertainty are disfavored and should only be sustained where the Complaint is so uncertain the demurring defendant cannot reasonably respond thereto. (See, e.g., Khoury, 14 Cal.App.4th at 616). Here, the breach of contract claim is sufficient to state a claim and apprise Reisner of the issues it is to meet and not so uncertain Reisner cannot reasonably respond thereto. ¿The Complaint

alleges the subject contract, its terms, and that Reisner breached by failing to remit payment for specified dates of work. (See Compl., ¶¶ 10-11, 22-25.) Moreover, even if the pleading is somewhat vague or contains conflicting math, “ambiguities can be clarified under modern discovery procedures.” (Id.)

2.

Common Count: Goods and Services

Rendered

“A common count is not a specific cause of action, however; rather, it is a simplified form of pleading normally used to aver the existence of various forms of monetary indebtedness, including that arising from an alleged duty to make restitution under an assumpsit theory...When a common count is used as an alternative way of seeking the same recovery demanded in a specific cause of action, and is based on the same facts, the common count is demurrable if the cause of action is demurrable.” (Korchemny v. Piterman (2021) 68 Cal.App.5th 1032, 1047, internal quotations and citations omitted.) “In California, it has long been settled the allegation of claims using common counts is good against special or general demurrers.” (Farmers Ins. Exchange v. Zerlin (1997) 53 Cal.App.4th 445, 460.)

The required elements of a common count claim are “(1) the statement of indebtedness in a certain sum, (2) the consideration, i.e., goods sold, work done, etc., and (3) nonpayment.” (Id., citation omitted.)

Reisner argues the Complaint fails to state a claim for common counts because it fails to allege the reasonable value of the goods or services. (See Dem. at 8:25-28.) Instead, it alleges “Therefore, no reasonable value of the COHEN’s services was provided.” (See id., at 9:9-13.) Reisner also argues the claim is uncertain because it is unclear whether Plaintiff seeks payment under the written contract or quantum meruit. (See id., at 9:14-15.)

The Court

OVERRULES Reisner’s Demurrer to the common counts claim. This claim alleges Reisner is indebted to Cohen in the sum of \$48,640 plus 10 percent interest for services Cohen provided to Reisner. (See Compl., ¶ 27-29.) The Complaint

also alleges nonpayment of the reasonable value of services provided, "REISNER failed to pay any additionally billed expert hours performed.... Therefore, no reasonable value of the COHEN's services was provided." (Id., ¶¶ 29-31.) This claim seeks the same recovery as its breach of contract claim and thus "must stand or fall with the other count." (Reichert v. General Ins. Co. of Am. (1968) 68 Cal.2d 822, 835.) Because this claim is sufficiently alleged, it also survives demurrer.

Thus, the Court OVERRULES Reisner's Demurrer to the Second Cause of Action for Common Counts.

V.

MOTION TO STRIKE

A.

Legal Standard

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (See Code Civ. Proc. § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (See id. at § 436(b).) This provision is for "the striking of a pleading due to improprieties in its form, or in the procedures, pursuant to which it was filed." (Ferraro v. Camarlinghi (2008) 161 Cal.App.4th 509, 528 [emphasis in original].) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (See Code Civ. Proc. at § 437.)

B.

Analysis

Reisner moves to strike:

(1)

From the caption/title block on page 1: "Demand: \$53,540.00+";

(2)

Paragraph 1 on page 1: "and equitable relief";

(3)

From paragraph 11 on page 4: "with
interest of 10% per annum (\$4,864) (current total is \$53,540+)";

(4)

Paragraph 20 on page 6 in its entirety;

(5)

From paragraph 25 on page 6: "plus 10% annual interest thereon";

(6)

From Prayer paragraph 32 on page 7: "plus 10% annual interest";

(7)

From Prayer paragraph 33 on page 7: "and reasonable attorney's fees";

(8)

Prayer paragraph 34 on page 7 in its entirety: "Order the parties to
arbitration., as appropriate.";

(9)

Prayer paragraph 35 on page 7 in its entirety: "Declaratory or injunctive
relief, if applicable."

1.

The 10 Percent Interest Allegations and
\$53,540 Demand

While breach

of contract claims have a default prejudgment interest rate of 10 percent, unless
a different rate is specified in the contract, all other actions have a default
interest rate of 7 percent. (See Civil Code § 3287 et seq. & Cal.

Const. Art. 15 § 1.) Uncertainty in amount of damages is not alone
determinative of a denial of prejudgment interest, because uncertainty is inherent in any
award of prejudgment interest. (See

Hewlett-Packard Co. v. Oracle Corp. (2021) 65 Cal.App.5th 506, 576.)

Reisner

argues the allegations seeking 10 percent annual interest in paragraph 11, paragraph 25, and the prayer and caption demand of \$53,540 plus are unsupported by factual allegations of due dates, breaches, and invoice dates. (See Mot. at 6:3-6, 6:16-19.) Reisner also argues the principal and interest calculations are incorrect. (See id., at 6:14.)

The Court

DENIES Reisner's Motion to Strike the interest allegations and alleged damages. The Complaint alleges a basis for prejudgment interest based on the parties' alleged contract and Reisner's alleged breach. (See Compl., ¶ 10c ["Client agrees to pay an interest charge...the maximum rate permitted by law..."].) Because an interest rate is not specified, the proper default rate is 10 percent, which the Complaint alleges. Additionally, the Court does not find it improper for Cohen to allege a damages amount that appears to be unsupported by the calculations described in the Complaint as a pleading can allege a higher damage amount than the evidence ultimately shows Cohen is entitled to receive.

2.

Attorneys' Fees Prayer

California

Code of Civil Procedure § 1021 provides for attorney's fees specifically provided by statute or by agreement between the parties. (See Code Civ. Proc. § 1021.)

Reisner

argues the prayer for attorneys' fees is unsupported because the Complaint does not plead any attorney-fee statute and the retainer terms quoted in the Complaint do not include an attorney-fee clause.

The Court

GRANTS Reisner's Motion to Strike the prayer for attorneys' fees as the Complaint does not allege that the alleged contract between the parties provided for attorney fees.

3.

Paragraph 20 and Arbitration Prayer

Code of Civil

Procedure § 1281.2 authorizes a party to file a motion for an order compelling the parties to arbitrate a controversy. (See Code Civ. Proc. § 1281.2.)

Reisner

argues paragraph 20 and the prayer for arbitration are improper as Plaintiff must proceed through a statutory petition and meet the requirements of Code of Civil Procedure § 1281.2 if he wishes to compel arbitration. (See Mot. at 7:14-18.)

The Court

agrees with Reisner and GRANTS Reisner's Motion to Strike paragraph 20 and prayer for arbitration WITHOUT LEAVE TO AMEND.

4.

Equitable, Declaratory, and Injunctive
Relief

"The

appropriate procedural device for challenging a portion of a cause of action seeking an improper remedy is a motion to strike." (Brown v. Ralphs Grocery Co. (2018) 28 Cal.App.5th 824, 844.)

Reisner

argues the prayer for declaratory or injunctive relief and references to equitable relief are improper because the Complaint does not plead any equitable claim or theory for such relief. (See id., at 7:21-8:4.)

The Court

agrees with Reisner and GRANTS Reisner's Motion to Strike the prayer for declaratory or injunctive relief and allegations for equitable relief WITHOUT LEAVE TO AMEND.

VI.

CONCLUSION

Based on the

foregoing, the Court OVERRULES Reisner's Demurrer.

The Court GRANTS

IN PART Reisner's Motion to Strike as to (1) prayer for attorneys' fees; (2) arbitration allegations and prayer; and (3) equitable, declaratory, and injunctive relief allegations and prayer WITHOUT LEAVE TO AMEND and DENIES the Motion as to allegations of interest and amount demanded.

Reisner is
ordered to file an Answer only by no later than August 28, 2026.

The Case

Management Conference is continued to December 17, 2026, at 8:30 a.m.

IT
IS SO ORDERED.

DATED: August 17, 2026

Hon. Michael R. Amerian

Judge,
Superior Court

[1] Reisner filed two
Motions to Strike on July 20, 2026. The Court will consider the later filed
Motion.

[2] Plaintiff's counsel
completely misreads Rule of Court, rule 3.1320(d) as requiring at least 35
days between the filing and hearing of a demurrer when it is in fact, the
opposite. (See Opp., 2:7-11.) That rule requires a demurrer be set for hearing
"not more than 35 days following [its] filing."

[3] All statutory references
are to California codes unless stated otherwise.